

3. STEPHENS v. LAUB LAW PLLC, ET AL., 25CV1050**(A) Defendant Morgenstern's Demurrer****(B) Defendant Morgenstern's Motion to Strike****Defendant Morgenstern's Demurrer**

Pursuant to Code of Civil Procedure section 430.10, subdivisions (a), (e), and (f), defendant Jordan Morgenstern ("demurring-defendant") generally demurs to the entire third amended complaint ("TAC") filed by plaintiff Jon C. Stephens ("plaintiff") on November 3, 2025, and specially demurs to the first, second, and fourth causes of action alleged therein on the grounds that each of these causes of action is barred by the applicable statute of limitations and is uncertain.

Defense counsel declares she met and conferred with plaintiff on November 26, 2025, and again on December 18, 2025. (Cullinane-Smith Decl., ¶¶ 6, 10 & Exs. 5, 9.)

On February 20, 2026, plaintiff filed a single opposition to demurring-defendant's demurrer, as well as the motion to strike that defendant concurrently filed with the demurrer.

Demurring-defendant filed no reply.

The hearing on this matter was continued from March 13, 2026, based upon a stipulation of the parties filed March 10, 2026.

1. Background

In May 2022, Reliance Standard Life Insurance Company ("RSLI") suspended plaintiff's long-term disability benefits pending receipt of updated medical certification. (TAC, ¶ 16.) In August 2022, plaintiff retained defendant Laub and Laub to represent plaintiff concerning a spousal support modification and the disability benefits issue. (TAC, ¶ 17.) In October 2022, having received no response on behalf of plaintiff, RSLI suspended plaintiff's benefits claim. (TAC, ¶ 19.)

On April 5, 2023, demurring-defendant specially-appeared for defendant Joey Max Laub (managing partner of Laub & Laub) on behalf of plaintiff for a readiness conference in plaintiff's family law case. (TAC, ¶¶ 11, 22.) During this hearing, the court suggested that defendant Lori London act as judge pro tem for an upcoming settlement conference. (TAC, ¶ 23.) However, defendant London had previously represented plaintiff's ex-wife. (TAC, ¶ 23.) Plaintiff immediately objected. (TAC, ¶ 23.) Demurring-defendant advised plaintiff to "just agree," assuring him that any settlement conference proceedings before defendant London would be non-binding. (TAC, ¶ 24.) Plaintiff reluctantly consented on the record but later informed demurring-defendant he would not sign a written waiver. (TAC, ¶ 25.)

Nevertheless, on May 23, 2023, defendant London presided over the settlement conference. (TAC, ¶ 26.) Plaintiff alleges he suffered harm.

2. Request for Judicial Notice

Pursuant to Evidence Code section 452, subdivision (d), the court grants demurring-defendant's unopposed² request for judicial notice of (1) the reporter's transcript in the matter of *Stephens v. Stephens* (El Dorado Super. Ct., Case No. SFL20110189) dated April 5, 2023; and (2) the court docket for *Stephens v. Stephens*.

3. Legal Principles

"[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff's ability to prove those allegations." (*Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140.) A demurrer is directed at the face of the complaint and to matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions or conclusions of

² Plaintiff does not oppose the request for judicial notice; however, he claims demurring-defendant misidentified the case number and date of the transcript. (Opp. at 3:22–26.) Plaintiff asks the court to use the correct information. The court will use the case number and date reflected on the judicially-noticed transcript.

facts or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) A judge gives “the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Blank*, *supra*, 39 Cal.3d at p. 318.)

4. Discussion

“An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.” (Code Civ. Proc., § 340.6, subd. (a).) “It is well settled that the one-year limitations period of [Code of Civil Procedure] section 340.6 ‘ “is triggered by the client’s discovery of ‘the facts constituting the wrongful act or omission,’ not by his discovery that such facts constitute professional negligence, i.e., by discovery that a particular legal theory is applicable based on the known facts.” (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 685.)

Here, as demurring-defendant argues, the one-year statute of limitations under Code of Civil Procedure section 340.6, subdivision (a) applies to all three causes of action alleged against demurring-defendant: professional negligence, IIED, and breach of fiduciary. (See *Stoll v. Superior Court* (9 Cal.App.4th 1362, 1366–1369.) That is because for each of these causes of action, the TAC alleges that demurring-defendant advised plaintiff to waive a conflict of interest, concealed conflicts, and/or compelled plaintiff to appear before his “former adversary” acting as judge pro tem. (TAC, ¶¶ 37, 42.) Therefore, each cause of action arises from demurring-defendant’s performance of professional legal services.

Based on the allegations in the TAC, plaintiff knew demurring-defendant advised him to waive the conflict of interest – the alleged conflict being that defendant London, who

previously represented plaintiff's ex-wife, was the proposed judge pro tem for an upcoming settlement conference – during the readiness conference on April 5, 2023. April 5, 2023, is the only date upon which the TAC alleges demurring-defendant to have acted. (TAC, ¶¶ 14, 22.)

Therefore, the one-year statute of limitations ran on April 4, 2024. Plaintiff did not file his original complaint until April 21, 2025.

Plaintiff argues that he did not reasonably discover that “appreciable harm” occurred until his disability benefits were reinstated in May 2024. (Opp. at 6:24–7:1, 7:8–10.) However, the court rejects this argument. The alleged fact constituting demurring-defendant's wrongdoing was that demurring-defendant advised plaintiff to waive the conflict of interest. The TAC clearly alleges this occurred on April 5, 2023. Additionally, plaintiff argues that additional wrongdoing occurred in May 2023 and May 2024. However, there are no allegations in the TAC alleging that demurring-defendant committed any wrongdoing in May 2023 or May 2024.

Because each cause of action alleged against demurring-defendant is time-barred, the demurrer is sustained. Because plaintiff has had a previous opportunity to amend, and it does not appear reasonably likely that plaintiff can further amend the pleading to cure the statute of limitations defect (it is the court's understanding that demurring-defendant's involvement in this case was limited to the April 5, 2023, readiness conference), the court denies further leave to amend.

Defendant Morgenstern's Motion to Strike

Having sustained the demurrer without leave to amend, the motion to strike is denied as moot.

TENTATIVE RULING # 3: THE DEMURRER IS SUSTAINED WITHOUT LEAVE TO AMEND. THE MOTION TO STRIKE IS DENIED AS MOOT. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF

INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.